

Syllabus

do, see, *e. g.*, *United States v. Booker*, 543 U. S. 220, and prior convictions in only two States are potentially affected here. Pp. 105–109.

JUSTICE GORSUCH, joined by JUSTICE GINSBURG and JUSTICE BREYER, concluded in Part IV–A that *Apodaca* lacks precedential force. Treating that case as precedential would require embracing the dubious proposition that a single Justice writing only for himself has the authority to bind this Court to already rejected propositions. No prior case has made such a suggestion. Pp. 101–105.

JUSTICE GORSUCH, joined by JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR, concluded in Parts IV–B–2 and V that Louisiana’s and Oregon’s reliance interests in the security of their final criminal judgments do not favor upholding *Apodaca*. Worries that defendants whose appeals are already complete might seek to challenge their nonunanimous convictions through collateral review are overstated. Cf. *Teague v. Lane*, 489 U. S. 288. *Apodaca*’s reliance interests are not boosted by Louisiana’s recent decision to bar the use of nonunanimous jury verdicts. A ruling for Louisiana would invite other States to relax their own unanimity requirements, and Louisiana continues to allow nonunanimous verdicts for crimes committed before 2019. Pp. 109–111.

JUSTICE THOMAS concluded that Ramos’ felony conviction by a non-unanimous jury is unconstitutional because the Sixth Amendment’s protection against nonunanimous felony guilty verdicts applies against the States through the Privileges or Immunities Clause of the Fourteenth Amendment, not the Due Process Clause. Pp. 132–140.

GORSUCH, J., announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–A, III, and IV–B–1, in which GINSBURG, BREYER, SOTOMAYOR, and KAVANAUGH, JJ., joined, an opinion with respect to Parts II–B, IV–B–2, and V, in which GINSBURG, BREYER, and SOTOMAYOR, JJ., joined, and an opinion with respect to Part IV–A, in which GINSBURG and BREYER, JJ., joined. SOTOMAYOR, J., filed an opinion concurring as to all but Part IV–A, *post*, p. 111. KAVANAUGH, J., filed an opinion concurring in part, *post*, p. 115. THOMAS, J., filed an opinion concurring in the judgment, *post*, p. 132. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., joined, and in which KAGAN, J., joined as to all but Part III–D, *post*, p. 140.

Jeffrey L. Fisher argued the cause for petitioner. With him on the briefs were *G. Ben Cohen*, *Brian H. Fletcher*, *Pamela S. Karlan*, and *Yaira Dubin*.

Elizabeth B. Murrill, Solicitor General of Louisiana, argued the cause for respondent. With her on the brief were